

**ORIGINAL****SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X INDEX NO. 22638/2019E

KRISHAUN ROGERS,**PLAINTIFF,****V.****AMENDED VERIFIED COMPLAINT****CITY OF NEW YORK, PO JAMES A. LINDQUIST,
AND PO GINA MESTRE, SERGEANT OKTROVA
AMADEO, and PO JOHN DOE IV,****DEFENDANTS.**

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Plaintiff, Krishaun Rogers, as and for his complaint, respectfully allege as follows:

1. At all times herein mentioned, plaintiff, Krishaun Rogers was a resident of the County of Bronx, City and State of New York.
2. At all times herein mentioned, defendant **PO JAMES A. LINDQUIST**, a male Hispanic was a Police Officer employed by defendant City of New York Police Department.
3. At all times herein mentioned, defendant **PO GINA MESTRE**, a female Hispanic was a Police Officer employed by defendant City of New York Police Department.
4. At all times herein mentioned, defendant **SERGEANT OKTROVA AMADEO**, a male African-American was a Police Officer employed by defendant City of New York Police Department.
5. At all times herein mentioned, defendant **PO JOHN DOE IV**, a male Hispanic was a Police Officer employed by defendant City of New York Police Department.
6. At all times herein mentioned, defendant the City of New York was and is a municipal corporation duly organized and existing under the laws of the State of New York.
7. At all times herein mentioned, defendant the City of New York maintained and was responsible for overseeing, supervising and regulating all conduct engaged in and undertaken by the City of New York

Police Department.

8. At all times herein mentioned, defendant the City of New York maintained and was responsible for overseeing, supervising and regulating all conduct engaged in by the City of New York Police personnel while such personnel were engaged in police business, including that of defendants **PO JAMES A.**

LINDQUIST, PO GINA MESTRE, SERGEANT OKTROVA AMADEO and **PO JOHN DOE IV.**

9. Annexed hereto as Exhibit A is a Notice of Claim served on defendants City of New York, **PO JAMES A. LINDQUIST, PO GINA MESTRE, SERGEANT OKTROVA AMADEO** and **PO JOHN DOE IV**, on November 19, 2018.

Defendant, the City of New York, has neglected and refused to make an adjustment in payment thereof within more than 30 days after service of the Notice of Claim. Thirty days have elapsed since such service of the notices of claim and payment thereof has been rejected or refused.

FACTUAL ALLEGATIONS

10. That on or about June 19, 2018, at approximately 11:00 P.M., while the plaintiff Krishaun Rogers was lawfully and rightfully walking on West Fordham Road, Bronx, New York, the Plaintiff was caused to sustain injuries by **PO JAMES A. LINDQUIST, PO GINA MESTRE** and **SERGEANT OKTROVA AMADEO** when he was assaulted, battered and handcuffed, forcibly searched, illegally detained and unlawfully arrested, maliciously prosecuted at which time and place, police officers, and/or agents, servants and/or employees of The City of New York and the New York City Police Department, without probable cause, justification or provocation, arrested, detained and assaulted and battered said claimant and detained him. The New York City Police Department was negligent in the hiring, training and retention of its officers which were involved in the within occurrence.

11. That the plaintiff Krishaun Rogers was unlawfully arrested and detained from June 19, 2018 to June 23, 2018.

12. Defendants **PO JAMES A. LINDQUIST, PO GINA MESTRE** and **SERGEANT OKTROVA**

AMADEO were on duty and working as a police officers employed by defendant City of New York Police Department at the time of the aforementioned assault and battery upon the plaintiff.

13. On or about June 19, 2018, at approximately 11:00 PM while the plaintiff was lawfully walking down the street on West Fordham Road, Bronx County, New York three New York City Police Officers, namely, **PO JAMES A. LINDQUIST, PO GINA MESTRE and SEARGEANT OKTROVA AMADEO** without cause of justification started chasing plaintiff down the street.

14. While **PO JAMES A. LINDQUIST, PO GINA MESTRE and SEARGEANT OKTROVA AMADEO** were chasing plaintiff one of then yelled out police stop before I shoot at which time plaintiff immediately stop running. The plaintiff stopped running and was assaulted by all three officers and was handcuffed, placed in a police vehicle and brought to a local precinct.

15. This is a civil rights action in which the Plaintiff Krishaun Davis seeks relief for the defendants' violation of his rights secured by the Civil Rights Act of 1866 and 1871, 42 U.S.C. §§1981 and 1983 and of the rights secured by the United States Constitution, Amendments Four and Fourteen and for the rights secured under the Constitution of the State of New York, Article I, Sections 11 and 12 and the common law of the State of New York.

16. Plaintiff seeks damages, both compensatory and punitive, affirmative and equitable relief, an award of attorneys' fees and costs and such other relief as this Court deems equitable and just.

NOTICE OF CLAIM

17. That on or about November 19, 2018, a Notice of Claim, was served upon the Comptroller of the City of New York. The case has been assigned claim number 2018PI032906 by the City of New York, Office of the Comptroller, Claims and Adjudication.

18. The 50-H hearing of Plaintiff Krishaun Rogers was conducted on February 12, 2019.

19. That more than thirty days have elapsed since the Notice of Claim has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment

thereof.

20. That this action is commenced within one year and ninety days after the causes of action arose and other causes of action within three (3) years when said action arose.

AS AND FOR A FIRST CAUSE OF ACTION
(42 USC § 1983 And The Use of Excessive And Unreasonable Force)

21. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

22. That the plaintiff's rights have been violated under the Fourth and Eighth Amendment of the United States Constitution made applicable to the states via the Fourteenth Amendment pursuant to 42 U.S.C. § 1983, in that plaintiff were unlawfully subjected to excessive and unreasonable force by defendants and unidentified police officers, who either intentionally, recklessly or negligently assaulted and battered plaintiff.

23. That the said assault and battery of the plaintiff Krishaun Rogers was affected by defendants and unidentified police officers without authority of law and without any reasonable necessity to use any force much less the excessive force that they employed and the force employed was used without legal justification, without plaintiffs' consent, with malice and with an intent to inflict pain and suffering.

24. As a direct result of defendants' and unidentified police officers' actions, plaintiff was deprived of rights, privileges and immunities under the Fourth Amendment of the United States Constitution being more particularly plaintiff's rights to be free from the use of excessive and unreasonable force.

25. That all the defendants and unidentified police officers who witnessed the use of excessive force against the plaintiff and who had a reasonable opportunity to intervene and prevent him being injured and who failed to do so are liable to the plaintiff via their failure to exercise their affirmative duty to intervene.

26. That by reason of the unlawful use of excessive and unreasonable force, the plaintiff was harmed physically, requiring him to received medical attention and he was subjected to physical pain,

humiliation, embarrassment, anxiety, closed confinement, and that he will be subjected to continuing physical harm, pain, future surgeries and expenses for and will continue to incur medical expenses, and that plaintiffs was otherwise harmed.

AS AND FOR A SECOND CAUSE OF ACTION
(Liability of Defendant City for Constitutional Violations – Monell Claim)

27. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

28. At all times materials to this complaint, the defendant City of New York, acting through its police department, the New York City Police Department, had in effect de facto policies, practices, customs and usages that were a direct and proximate cause of the unconstitutional conduct of the defendant police officers.

29. The aforementioned customs policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included but not limited to assault and battering persons with justification thereto, and thereafter concealing same to superiors, I.A.B. and CCRB .

30. The defendant City of New York, failed to effectively screen, hire, train, supervise and discipline its police officers and employees, including the defendant police officers and unidentified officer(s) herein, for their refusal to report assault and battery of a person by fellow officers, where there was no justification thereof.

31. The existence of such de facto policies and/or well-settled and widespread customs and practices has been known to supervisory and police-making officers and officials of the Police Department and the City of New York for a substantial period of time.

32. Despite knowledge of such illegal de facto policies and practices, the supervisory and policy-making officers and officials of the Police Department and the City of New York have not taken adequate steps to terminate these policies and practices, have not disciplined individuals who engage in such practices, or otherwise properly trained police officers with regard to the constitutional and statutory limits on the

exercise of their authority, and have instead sanctioned and ratified these policies, customs and practices through their deliberate indifference to or negligent disregard of the effect of said policies, customs and practices upon the constitutional rights of persons in the City of New York.

33. Defendant City of New York as well as unidentified police officers who were supervisors and final decision makers as a matter of policy and practice, have with deliberate indifference failed to properly train, discipline, sanction and retrain police officers, despite their knowledge of the recurring problem of violations of the Constitutional rights of citizens by seizing persons, assaulting persons by the use of excessive and unlawful force, and thereafter falsifying official records etc, and in so failing, the defendant City of New York has caused, encouraged, condoned and allowed the defendants in this case to engage in the aforementioned unlawful conduct without fear of consequences for their illegal acts which did cause the plaintiff to be subjected to deprivations of his civil rights.

34. That the defendant municipality, City of New York, alerted to the existence of a significant number of illegal seizures and arrests, by its police officers, by repeated complaints, of false arrest, and the use of excessive and unlawful force, exhibited deliberate indifference thereto in that it was obvious to the City of new York that there was a need for more and/or improved supervision of police officers in order to protect against constitutional violations and in spite or repeated complaints of civil rights violations, there have been no meaningful attempts on the part of City of New York to investigate or forestall further incidents.

35. That the defendant municipality, City of New York, has also been alerted by its employee officers to cover up the use of excessive and unlawful force by its police officers, and that the culture of violence by NYPD has been allowed to exist without repercussions to the officers who engaged in such behavior. This behavior was permitted to continue in the case at bar.

36. Moreover, the action of the individual defendants resulted from and were taken pursuant to a de facto policy and/or well-settled and widespread custom and practice of the City of New York, which is

implemented by police officers of said City. Where the use of unlawful and excessive force is concealed by a conscious effort by all officers to conspire and thus conceal such conduct. Where the upward mobility of the officers within ranks is accomplished. This conduct is open and notorious and frequently used by officers to conceal improper conduct by said officers. This is a well-established practice and custom of the defendant City of New York police department which has been the subject of a voluminous number of civil rights actions.

37. The existence of such de facto policies and/or well-settled and widespread custom and practices have been known to supervisory and police-making officers and officials of the Police Department of the City of New York for a substantial period.

38. Each year, thousands of civil rights actions alleging illegal seizure and false arrest and unlawful imprisonment and the use of excessive and unlawful force by police officers are brought and “settled” by the defendant City of New York. Each year, the defendant, City of New York spends millions of dollars to settle and/or satisfy said actions. These matters contained allegations of false arrest, unlawful and excessive force and unlawful imprisonment by the defendant City of New York police officers. Furthermore, these facts alone substantiate the fact that not only is the defendant City of New York aware of said police practices and usages, but more so, that defendant City of New York has failed to stop said practices and has condoned said practices and usages.

39. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly train, instruct, and discipline police officers with regards to the duty to intervene and to report violations of civil right.

40. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly train, instruct, and discipline police officers with regards to falsifying police reports and providing misleading information to prosecutors.

41. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly train, instruct, and discipline police officers with the use of excessive and unlawful force.

42. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly train, instruct, and discipline supervising officers with regards to their review of charges and reports of matters involving injury to persons and of use of force and excessive force thereon.

43. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly instruct, and discipline police officers with regards to perjurious testimony and police reports.

44. Upon information and belief, and without limiting the foregoing, the City of New York has permitted police officers to maintain the “blue wall of silence” and to conceal and fail to report the misconduct of other police officers.

45. Upon information and belief, and without limiting the foregoing, the City of New York has structured procedures and standards at the Civilian Complaint Review Board, the Office of Chief of Department, and Internal Affairs in such a manner that an officer’s denial of the charges is ordinarily sufficient to remove the threat of any discipline or restraint upon the officer’s conduct and to prevent any objective review of the officer’s conduct.

46. Upon information and belief, and without limiting the foregoing, the City of New York has failed to require police officers to accept independent and objective review of civilian complaints and imposition of discipline.

47. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly structure the police department to review and discipline the existence of unlawful conspiracy by defendant officers.

48. Defendant City of New York is directly liable and responsible for the acts of defendants and unidentified officers because it has repeatedly and knowingly failed to properly supervise, train and discipline said officers and because it repeatedly and knowingly failed to enforce the rules and

regulations of the New York City Police Department and the laws of the State of New York and the United States.

49. The knowing and repeated failures of the defendant City of New York to properly supervise, train and discipline said officers caused the injuries to plaintiff alleged herein.

50. Upon information and belief, defendant City of New York knew or should have known that the acts alleged herein would deprive plaintiff of his rights without due process of law, in violation of the First, Fourth, Fifth, Ninth, and Fourteenth Amendments to the United States Constitution and Article 1, §§ 1, 6, 8, 9, 11 and 12 of the Constitution of the State of New York, including, without limitation, such rights as plaintiffs' rights, right to be free from the use of excessive force, right to due process, and right to equal protection of the laws.

51. As a result of the foregoing conscious policies, practices, customs and/or usages, defendant City of New York has permitted and allowed the employment and retention of individuals as police officers and employees whose individual circumstances place the public or segments thereof at substantial risk of being the victims of unlawful and/or unreasonable behavior. Such policies, practices customs and/or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to the plaintiff herein.

52. As a result of the foregoing, plaintiff sustained great emotional and physical injuries, was subject to great humiliation, and was otherwise harmed, damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION
(NYS Constitutional Violations)

53. Plaintiff repeats, reiterates and incorporates by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

54. Defendants subjected plaintiff to the foregoing conspiracies, acts, and omissions to act without due process of law, thereby depriving plaintiff of rights, privileges and immunities secured by Article 1, §§

1, 6, 8, 9, 11 and 12 of the New York State Constitution, including, without limitation, the following deprivations of his rights, privileges and immunities:

(a) plaintiff was deprived of his right to be free from the use of excessive or unreasonable force in the course of either a lawful or an unlawful seizure, in violation of § 12 of the Constitution of the State of New York; and

(b) plaintiff was deprived of his rights to liberty, without due process of law, in violation of § 6 of the Constitution of the State of New York.

55. As a result of the defendants' conduct, Krishaun Rogers, sustained great emotional and physical injury including mental suffering, humiliation, embarrassment, and was otherwise harmed, damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACTION
(Intentional Infliction of Emotional Distress)

56. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

57. By the actions described above, **PO JAMES A. LINDQUIST, PO GINA MESTRE, SERGEANT OKTROVA AMADEO and PO JOHN DOE IV**, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotion distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

58. As a result of the foregoing, plaintiff sustained great emotional injuries, was subject to great humiliation, and was otherwise harmed, damaged and injured.

AS AND FOR A FIFTH CAUSE OF ACTION
(Negligence)

59. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

60. Defendants, by their conduct negligently failed to use due care in the performance of their duties in that they failed to perform their duties as reasonable and prudent officers where the defendant(s) officers viciously assaulted and battered persons and other defendant officers recklessly and negligently ignored same.

61. Defendants, by their conduct negligently failed to use due care in the performance of their duties in that they failed to perform their duties as reasonable and prudent officers where given the facts herein no officer intervened to stop either the initial unlawful use of excessive force.

62. Defendants, by their aforementioned acts, negligently failed to use due care in the performance of their duties in that they hired and retained incompetent and unfit police officers whom they knew, or should have known, possessed dangerous propensities as well as a propensity to conspire against innocent persons where said officers would conspire and falsely arrest persons or fail to report any person they have injured, in an effort to conceal their assaultive conduct and their unlawful use of force, and excessive unreasonable use of force.

63. Defendants, by their aforementioned acts, negligently failed to use due care in the performance of their duties in that they failed to exercise care in instructing police officers, officials, supervisors, and civilian employees as to their department, behavior, and conduct, including (but not limited to) the obligation of police officers to intervene, as an affirmative duty to protect citizens threatened with deprivation of constitutional rights by other New York City police officers;

64. Defendants, by their aforementioned acts, negligently failed to use due care in the performance of their duties in that they failed to establish meaningful procedures for disciplining officers and other personnel who have engaged in such acts of misconduct.

65. Defendant officers acting jointly and severally, negligently caused extreme emotional distress to plaintiff. The acts and conduct of the defendants were reasonably foreseeable and were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

66. All of these acts were performed without any negligence on the part of the plaintiff and were the proximate cause of his injuries.

67. As a result of the foregoing, plaintiff sustained great emotional and physical injuries.

AS AND FOR A SIXTH CAUSE OF ACTION
(Failure To Intervene)

68. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

69. **PO JAMES A. LINDQUIST, PO GINA MESTRE, SERGEANT OKTROVA AMADEO, and PO JOHN DOE IV** each individual defendant officer had an affirmative duty to intervene on plaintiffs' behalf to prevent the violation of his constitutional rights.

70. **PO JOHN DOE IV** as the supervising offer of the 52nd Precinct, had an affirmative duty to intervene on plaintiff's behalf to prevent the violation of his constitutional rights.

71. The individual defendant officers failed to intervene on plaintiffs' behalf to prevent the violation of his constitutional rights despite having a realistic opportunity to do so.

72. As a result of the aforementioned conduct of the individual defendants and other unidentified officers, plaintiff's constitutional rights were violated and they were subjected to use of excessive force and other violations of his constitutional rights.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Assault And Battery by PO JAMES A. LINDQUIST)

73. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

74. **PO JAMES A. LINDQUIST** while in the scope of his employment, maliciously, willfully and intentionally committed assault and battery upon the plaintiff with apparent ability and objective to cause imminent harm and offense bodily harm and subjected plaintiff to physical injury and harm and embarrassment and humiliation. **PO JAMES A. LINDQUIST** repeatedly with great force slammed plaintiff's head in the back of a motor vehicle.

75. **PO JAMES A. LINDQUIST** intentional willfully and maliciously battered plaintiff, when he, in a hostile and offensive manner struck plaintiff without his consent and with the intentions of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

76. The acts and conduct of **PO JAMES A. LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO** were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

77. As a result of the foregoing, plaintiff sustained great emotional injuries, was subject to great humiliation, physically harmed and was otherwise harmed, damaged and injured.

AS AND FOR A EIGHT CAUSE OF ACTION
(Assault And Battery by PO GINA MESTRE)

78. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

79. **PO GINA MESTRE** while in the scope of her employment, maliciously, willfully and intentionally committed assault and battery upon the plaintiff with apparent ability and objective to cause imminent harm and offense bodily harm and subjected plaintiff to physical injury and harm and embarrassment and humiliation. **PO GINA MESTRE** repeatedly with great force slammed plaintiff's head in the back of a motor vehicle.

80. **PO GINA MESTRE** intentional willfully and maliciously battered plaintiff, when they, in a hostile and offensive manner struck plaintiff without his consent and with the intentions of causing harmful

and/or offensive bodily contact to the plaintiff and caused such battery.

81. The acts and conduct of **PO JAMES A. LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO** were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

82. As a result of the foregoing, plaintiff sustained great emotional injuries, was subject to great humiliation, physically harmed and was otherwise harmed, damaged and injured.

AS AND FOR A NINTH CAUSE OF ACTION
(Assault And Battery by SERGEANT OKTROVA AMADEO)

83. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

84. **SERGEANT OKTROVA AMADEO** while in the scope of his employment, maliciously, willfully and intentionally committed assault and battery upon the plaintiff with apparent ability and objective to cause imminent harm and offense bodily harm and subjected plaintiff to physical injury and harm and embarrassment and humiliation. **SERGEANT OKTROVA AMADEO** repeatedly with great force slammed plaintiff's head in the back of a motor vehicle.

85. **SERGEANT OKTROVA AMADEO** intentional willfully and maliciously battered plaintiffs, when they, in a hostile and offensive manner struck plaintiff without her consent and with the intentions of causing harmful and/or offensive bodily contact to the plaintiffs and caused such battery.

86. The acts and conduct of **PO JAMES A. LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO** were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

87. As a result of the foregoing, plaintiff sustained great emotional injuries, was subject to great humiliation, physically harmed and was otherwise harmed, damaged and injured.

AS AND FOR A TENTH CAUSE OF ACTION
(NY State Law Negligent Hiring And Retention)

88. Plaintiffs repeats, reiterates and incorporates by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

89. Upon information and belief, defendant City of New York failed to use reasonable care in the hiring and retention of the aforesaid defendants who conducted and participated in the use of excessive force and other violations of plaintiff's civil rights.

90. Defendant City of New York knew, or should have known in the exercise of reasonable care, the propensities of the defendant officers and other unidentified officers, to engage in the wrongful conduct heretofore alleged in this Complaint.

AS AND FOR A TENTH CAUSE OF ACTION
(Negligent Training, Supervision and Entrustment)

91. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

92. Defendant City of New York was negligent in its screening and hiring of defendants **PO JAMES A. LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO, AND PO JOHN DOE IV.**

93. Upon information and belief, defendant the City of New York intentionally, knowingly or with deliberate indifference failed to properly train or supervise their police officers, thereby allowing defendants **PO JAMES A. LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO, AND PO JOHN DOE IV** to engage in the improper conduct complained of.

94. Upon information and belief, defendant the City of New York intentionally, knowingly or with deliberate indifference failed to properly train or supervise their police officers, thereby allowing defendants **PO JAMES A. LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO, AND PO JOHN DOE IV** to engage in the improper conduct complained of.

95. Upon information and belief in allowing defendants **PO JAMES A. LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO, AND PO JOHN DOE IV** to continue their employment as a City of New York Sanitation Department Police Officer, subsequent to numerous prior incidents similar to the incident complained of, and after having been placed on notice, either actual or constructive, of such prior similar incidents, defendant the City of New York ratified **PO JAMES A. LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO, AND PO JOHN DOE IV** misuse and abuse of their power and authority as a police officers employed by defendant City of New York.

96. Upon information defendant City of New York failed to provide adequate training to defendants **PO JAMES A. LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO, AND PO JOHN DOE IV**.

97. Upon information and belief, defendants **PO JAMES A. LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO, AND PO JOHN DOE IV** had numerous prior incidents similar to the incident complained of, and after having been placed on notice, either actual or constructive, of such prior similar incidents, defendant the City of New York failed to provide adequate supervision of defendants **PO JAMES A. LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO, AND PO JOHN DOE IV**.

98. Upon information defendant City of New York was on actual or constructive notice of defendants **PO JAMES A. LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO** propensity for excessive force and violence and intentionally and recklessly retained them as police officers with the City of New York Sanitation Department.

99. Upon information defendant City of New York was on actual or constructive notice of defendants **PO JAMES A. LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO** propensity for excessive force and violence and intentionally and recklessly entrusted **PO JAMES A.**

LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO with a weapon as a police officer with the City of New York Police Department.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
(Malicious Prosecution)

100. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

101. The City of New York defendants, including defendants **PO JAMES A. LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO** and **PO JOHN DOE IV** commenced or continued a criminal proceeding against the plaintiff.

102. The criminal proceedings against plaintiff terminated in favor of the accused, when each of the criminal charges against plaintiff was dismissed; there was no probable cause for the criminal proceeding; the City of New York, through the Police department including defendants **PO JAMES A. LINDQUIST, PO GINA MESTRE AND SERGEANT OKTROVA AMADEO** and **PO JOHN DOE IV**, acted with actual malice.

103. The acts and conduct of defendants alleged in the forgoing paragraphs constitute malicious prosecution under the laws of the State of New York. This Court has pendent jurisdiction to hear and adjudicate such claims.

105. By reason of the tortious conduct of defendants, the plaintiff suffered great intimidation and fear, sustained great physical injury, conscious pain and suffering, mental and emotional injuries and were otherwise harmed, damaged and injured.

106. For all claims arising under New York State Law, defendants are jointly and severally liable to the plaintiff inasmuch as this action arises out of the exceptions set forth in § 1602, subdivisions 5, 7, and 11 of the Civil Practice Law and Rules.

WHEREFORE, the plaintiff demands judgment:

(a) That this Court grant final judgment against defendants, jointly and severally, as and for plaintiff

KRISHAUN ROGERS in an amount that exceed the jurisdiction of all lower courts for compensatory damages and for punitive damages.

(b) That this Court grant final judgment in favor of plaintiff for all costs and disbursements of this action together with reasonable attorney's fees pursuant to by 42 USCA § 1988.

(c) That this Court grant such other and further relief as the Court deems just and proper.

Dated: Bronx, NY
August 15, 2019

Yours, etc.

Krishawn Rogers
KRISHAUN ROGERS/
Plaintiff

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

)
) SS:

COUNTY OF BRONX)

KRISHAUN ROGERS, being duly sworn, deposes and says, that deponent is the **PLAINTIFF** in the within action; that deponent has read the foregoing **AMENDED VERIFIED COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

Krishawn Rogers
KRISHAUN ROGERS
Plaintiff

Sworn to before me August 15, 2019

Bryan J. Hutchinson
Bryan J. Hutchinson
Notary Public
Notary Public State of New York
Reg. No. 02HU6047247
Qualified in Bronx County
Commission Expires Aug. 28, 2022

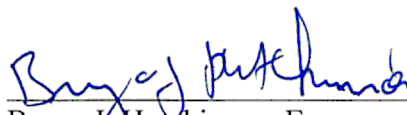
ATTORNEY CERTIFICATION

STATE OF NEW YORK)
COUNTY OF BRONX)

The undersigned attorney does hereby certify:

I am an attorney duly admitted to practice law before the Courts of the State of New York and I do hereby provide this signed certification pursuant to 22 NYCRR Part 130-1.1(c) with regard to the following documents served, filed and submitted herewith in this **AMENDED COMPLAINT**.

Dated: Bronx, New York
August 15, 2019



Bryan J. Hutchinson, Esq.

Law Office of Bryan J. Hutchinson, PLLC

Attorney for **Plaintiff**

1443 E. Gun Hill Rd, Suite 2

Bronx, New York 10469

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